

# SENATE . . . . . No. 2277

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## The Commonwealth of Massachusetts

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PRESENTED BY:

***Paul R. Feeney***

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to municipal light plants.

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PETITION OF:

| NAME:                  | DISTRICT/ADDRESS:                 |                  |
|------------------------|-----------------------------------|------------------|
| <i>Paul R. Feeney</i>  | <i>Bristol and Norfolk</i>        |                  |
| <i>Hannah Kane</i>     | <i>11th Worcester</i>             | <i>2/18/2025</i> |
| <i>Adam Gómez</i>      | <i>Hampden</i>                    | <i>2/19/2025</i> |
| <i>John C. Velis</i>   | <i>Hampden and Hampshire</i>      | <i>2/19/2025</i> |
| <i>Peter J. Durant</i> | <i>Worcester and Hampshire</i>    | <i>2/19/2025</i> |
| <i>Adam J. Scanlon</i> | <i>14th Bristol</i>               | <i>3/2/2025</i>  |
| <i>Bruce E. Tarr</i>   | <i>First Essex and Middlesex</i>  | <i>4/8/2025</i>  |
| <i>Kelly A. Dooner</i> | <i>Third Bristol and Plymouth</i> | <i>10/6/2025</i> |

# SENATE . . . . . No. 2277

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By Mr. Feeney, a petition (accompanied by bill, Senate, No. 2277) of Paul R. Feeney, Hannah Kane, Adam Gomez, John C. Velis and other members of the General Court for legislation to allow municipal light plants to provide services to any municipal or state utility, tribal utility or any other publicly-owned or operated utility, whether located inside or outside of the Commonwealth. Telecommunications, Utilities and Energy.

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## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to municipal light plants.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           "SECTION 1. Section 4A of Chapter 40 of the General Laws as appearing in the 2022  
2   Official Edition, is hereby amended by deleting in line 8 after the word “selectmen” the words “,  
3   and ”

4           SECTION 2. Said section of said chapter is hereby further amended by adding in line 9  
5   after the word “committee” the following words: , in a municipal light plant by the board or  
6   commission;

7           SECTION 3. Said section of said chapter is further amended by deleting in line 28 the  
8   word “or”

9           SECTION 4. Said section of said chapter is further amended by deleting in line 29 “.”  
10   and by adding the following words: , or a municipal light plant established under chapter 164 or  
11   by special law.

12           SECTION 5. Section 47B of Chapter 164 of the General Laws as appearing in the 2022  
13   Official Edition is hereby amended by adding the following subsection:-

14           (b) Any municipality acting by and through its municipal light board may provide  
15   services and assistance to any municipal or state utility, tribal utility as defined in 25 CFR §  
16   169.2, or any other publicly-owned or operated utility, whether located inside or outside of the  
17   Commonwealth, and governmental units as defined in section 4A of chapter 40, to construct,  
18   install, alter, operate, maintain or repair utility poles and conduit, wires, cables, and equipment,  
19   and streetlights and traffic signals to the same extent such municipality acting by and through its  
20   municipal light board may provide such services within its service territory. Any such  
21   municipality acting by and through its municipal light board may sell, rent, or lease merchandise,  
22   equipment, fixtures, utensils and chattels of any description related to the provision of such  
23   services. Any employee providing such services entered into between the municipality acting by  
24   and through its municipal light board and such other public entity shall be subject to the  
25   provisions of chapter thirty-two, sections one to twenty-eight, inclusive, and shall have the same  
26   rights and privileges thereunder, as if performing the same duties within the scope of his  
27   employment including voluntary assignments."